

STATEMENT OF WORK

Drug Enforcement Administration (DEA)

Houston Division

Vehicle Towing, Indoor and Outdoor Storage, and Maintenance Services

1. Introduction:

DEA Houston Field Division seizes vehicles each year used for purposes of trafficking illicit controlled substances and has a requirement for contractor services to provide vehicle towing, indoor and outdoor storage, and maintenance services for seized vehicles and Official Government Vehicles (OGV).

2. Tasks:

Facility Location and Performance Area:

- a) Vendor shall maintain indoor storage facilities located within 100 road miles of all local DEA Houston Field Division offices;
- b) Vendor shall maintain outdoor facilities located within 100 road miles of all local DEA Houston Field Division Offices;
- c) The indoor and outdoor storage facilities shall be located within 10 road miles of one another; and
- d) The DEA Houston Field Offices that the Vendor's storage facilities shall be within the requisite mile radiuses are:
 - 1. Houston Field Division
1433 West Loop South
Houston, TX 77027
 - 2. Galveston Resident Office
18050 Saturn Lane, Suite 240
Nassau Bay, TX 77058
 - 3. Beaumont Resident Office
550 Fannin St., Suite 501
Beaumont, TX 77701
 - 4. Corpus Christi Resident Office
1111 Southern Minerals Road
Corpus Christi, TX 78409
 - 5. Ray West Warehouse Inc.

4801 Baldwin Street
Corpus Christi, TX 78469

6. J.C. Elliot Landfill
7001 Ayers Street
Corpus Christi, TX 78469
7. Austin District Office
9009 Mountain Ridge Dr, STE A-300
Austin, TX 78759
8. Brownsville Resident Office
601 S. P St.
Brownsville, TX 78521
9. Del Rio Post of Duty
2401 Dodson Ave
Del Rio, TX 78840
10. Eagle Pass Resident Office
3381 US Highway South-277 East
Eagle Pass, TX 78852
11. Laredo District Office
109 Shiloh Dr.
Laredo, TX 78045
12. Laredo Warehouse
8909 San Dario Ave
Laredo, TX 78045
13. McAllen District Office
1200 N. Commerce Center
McAllen, TX 78501
14. San Antonio District Office
5555 Northwest Pkwy, Suite 101
San Antonio, TX 78249
15. Waco Resident Office
6801 Sanger Ave, Ste 2000
Waco, TX 78710

Facility Indoor and Outdoor Requirements:

- i) The vendor's indoor storage facility square footage shall be sufficient enough in size to store at one time a minimum of 25 and a maximum of 45 Category 1 vehicles;
- ii) The vendor's outdoor storage facility square footage shall be sufficient enough in size to store a total minimum of 25 and maximum of 45 Category 2,3, and 4 vehicles; and
- iii) The vendor shall provide copies of signed agreements for the required storage space as evidence that vendor has the required indoor and outdoor storage facilities, or will have the required facilities within thirty (30) calendar days of award date.

Facility Security Requirements:

- i) DEA seized vehicles shall be segregated from all non-DEA seized vehicles with a barrier to restrict all unauthorized ingress and egress. An acceptable barrier includes either a cyclone fencing unit or cement barrier of two (2) feet or higher;
- ii) All points of ingress and egress to the indoor facility shall have an electrical alarm system that limits access to DEA seized vehicles stored and maintained at Vendor's storage to approved personnel;
- iii) Indoor and outdoor facilities shall have 24 hour a day video surveillance. Video surveillance footage shall be kept for a period of at least thirty (30) calendar days;
- iv) The perimeter of the vendor's outdoor storage facility shall be secured with a fence wall at least six (6) feet tall and shall have razor wire or concertina wire attached. Vendor may propose other methods of wire/or fencing as long as their security fence/or barrier is at least six (6) feet tall;
- v) Loss, theft, or damage to any vehicle in the Vendor's custody shall be reported immediately to the Task Monitor (TM) and/or designee. Loss/damage to the vehicle shall be replaced (with that of like or equal value) or repaired, as instructed by the TM and/or designee, within 20 days of notification. Vehicle theft and/or vandalism shall be reported to the local police department and to the TM and/or designee within 24 hours of incident, and a copy of the police report shall be provided to the TM and/or designee within 24 hours of receiving the report; and
- vi) The vendor shall provide 24 hour-a-day manned security of at least one (1) security guard.

Staffing and Access Requirements:

- i) The vendor will make at least one (1) member of its staff available onsite at both its indoor and outdoor storage facilities between the hours of 8:30 AM and 5:00 PM, Central Standard Time, Monday through Friday, excluding Federal Government holidays. Vendor shall provide a point of contact for 24 hours per day, 7 days per week, and 365 days per year access for TM and/or designee;
- ii) Access is restricted to the vendor and/or their authorized employees, the TM and/or designee, or individuals accompanied by DEA personnel that are approved by the TM and/or designee. The vendor shall provide a list of all vendor's employees to the TM and/or designee upon award of this contract and will notify the DEA of any changes to its personnel;
- iii) The vendor shall maintain a visitor log. The vendor shall deny any individual who requests access to the storage facility containing vehicles that are the property of DEA who has not been approved by the TM and/or designee. The TM and/or designee will provide the list to the vendor upon award, The vendor shall annotate the names of those individuals, and if applicable, the organizations represented, and immediately notify the TM and/or designee;
- iv) Any requests for information regarding DEA seized vehicles shall be forwarded to the TM and/or designee. The vendor shall not release any information regarding DEA seizures; and
- v) TM and/or designee may perform monthly and unannounced inspections of facility, vehicles, case files, and processes.

Physical Security Plan:

- a) The vendor shall provide detailed physical security plan that should include at minimum:
 - i) Facility Location-state the address of all locations to be utilized under this contract;
 - ii) Facility Storage Space-how much indoor and outdoor storage space, respectively, vendor has available for DEA vehicles;
 - iii) Physical Security Details-describe area where vehicles will be stored, alarm system, video surveillance system, emergency response notification, access points, indoor and outdoor lighting;
 - A. Photos-provide at least three (3) photographs of the indoor and outdoor facilities, respectively; and

- B. Schematic-provide a blueprint sketch of the facility and where items are located, included but not limited to parking, indoor and outdoor storages, layout of vehicles, doors, security cameras, lighting, and fencing.

Towing Services:

- a) Vendor shall perform towing services in the following manner:
- i) The vendor shall pick up all roadside vehicle(s) within 45 to 90 minutes of notification by the TM and/or designee;
 - ii) The vendor shall coordinate all station tow within twenty-four (24) hours of notification by the TM and/or designee, who will notify the vendor of the government's point of contact that the vendor will need to coordinate with for each specific tow;
 - iii) The vendor may be directed to tow a vehicle to a location other than the vendor's storage facility; however, said location will be within 150 road miles of all local DEA Houston Field Division offices. If the tow truck driver notices personal property items in the vehicle, the vendor should notify the TM and/or designee immediately who will provide instruction to vendor for what to do with said personal property;
 - iv) If a tow driver arrives at the vehicle pick up point, and the vehicle is not ready to be towed (paperwork is not completed, keys not available, etc.), after one (1) hour, then the tow driver may depart without the vehicle. Vendor may invoice as if a tow has been completed. Vendor shall immediately notify the TM and/or designee via telephone/email within twenty-four (24) hours of departure without vehicle;
- b) The vendor shall use a standardize tow ticket for each vehicle. A copy shall be sent to DEA office that will be provided by the TM and/or designee within three (3) business days of the tow date. A second copy shall be retained in the vehicle's case file.
- c) The vendor shall provide minor on site repairs to a seized vehicle that is deemed not drivable or incapacitated and that is causing an intrusion or obstruction at the pickup location. Acceptable minor on site repairs would include the following:
- i) Replacement of a dead or nonfunctioning battery
 - ii) Replacement of a flat tire
- d) The vendor shall provide individual invoices for each separate tow (vehicle) (i.e. one for tractor and one for trailer);

- e) The vendor shall inspect and inventory the seized vehicle. The vehicle's condition shall be recorded on the vehicle's tow ticket. The tow ticket shall be signed by the tow truck driver and the government's point of contact for the tow, which will be provided to the vendor by the TM and/or designee;
- f) The vendor shall not drive the seized and/or forfeited vehicles except for the purpose of moving the vehicles within the secured storage facility. Use of vehicles for personal use is strictly prohibited;
- g) The vendor will be required to transport the vehicle to one of the following locations, but not limited to:

- 1. Houston Field Division
1433 West Loop South
Houston, TX 77027
- 2. Galveston Resident Office
18050 Saturn Lane, Suite 240
Houston, TX 77058
- 3. Beaumont Resident Office
550 Fannin St., Ste 501
Beaumont, TX 77701-2237
- 4. Corpus Christi Resident Office
1111 Southern Mineral Road
Corpus Christi, TX 78409
- 5. Ray West Warehouse Inc.
4801 Baldwin Street
Corpus Christi, TX 78469
- 6. J.C. Elliot Landfill
7001 Ayers Street
Corpus Christi, TX 78469
- 7. Austin District Office
9009 Mountain Ridge Dr, STE A-300
Austin, TX 78759
- 8. Brownsville Resident Office
601 S. P St.
Brownsville, TX 78521
- 9. Del Rio Post of Duty
2401 Dodson Ave

Del Rio, TX 78840

10. Eagle Pass Resident Office
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109 Shiloh Dr.
Laredo, TX 78045

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8909 San Dario Ave
Laredo, TX 78045

13. McAllen District Office
1200 N. Commerce Center
McAllen, TX 78501

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San Antonio, TX 78249

15. Waco Resident Office
6801 Sanger Ave, Ste 2000
Waco, TX 78710

- h) The vendor may be required to pay waste/dump fees if the vendor is required to take seized vehicles to landfills;
- i) The vendor shall provide long distance towing equipment for all vehicles including tractor trailers; and
- j) The vendor shall provide the following equipment:
 - i) A pallet jack;
 - ii) Trailer clean-up to include sweeping and hosing of trailers prior to pick up by the U.S. Marshal Service to remove any residue left in reefer units;
 - iii) An onsite forklift; and
 - iv) Maintenance of fuel and temperature of reefer units as required.

Initial Intake:

The following applies to all four categories of vehicles:

- a) The vendor shall assume sole responsibility, as well as legal and financial liability for the vehicle from the pickup site and until DEA retakes possession of the seized vehicle or the vehicle is released to the lien holder, claimant or owner of vehicle;
- b) The vendor shall establish/maintain a separate case file for each vehicle covered under this Statement of Work. Each case file shall include, at a minimum:
 - i) The signed tow ticket by the vendor and DEA personnel;
 - ii) Any records related to vehicle condition, storage, disposal, and all STO;
 - iii) Any documentation related to maintenance of the vehicle; and
 - iv) Digital photos of vehicle.
- c) Once the vehicle arrives at the storage facility, the vendor shall secure the vehicle. If the vendor is unable to secure any of the vehicle's windows or doors, they shall notify the TM and/or designee immediately.
- d) All vehicles shall be marked with the Government's complete vehicle ID number (CATS ID) and the date of custody on the windshield using chalk or comparable marking substance.
- e) All digital photos shall be sent to TM and/or designee via email within three (3) days of receipt and are required for all vehicles. At a minimum, photos shall include:
 - i) Pictures of all four (4) sides of the vehicle;
 - ii) The dashboard;
 - iii) Vehicle Identification Number (VIN); and
 - iv) A picture of the odometer.
- f) All vehicle keys shall be stored in a secure depository. All vehicles valued at over \$500.00 National Automobile Dealers Association (NADA) loan values that are received without ignition, door and/or turn keys shall be annotated on the tow ticket.

Storage:

- a) The vendor shall provide orderly and clean indoor storage and the outdoor storage facility shall be controlled in such a manner as to eliminate standing water and mud.

- b) If the vendor proposes a different facility during the contract term, the TM must approve the new facility in writing. The vendor assumes any and all the costs for relocating currently stored vehicles to the new facility, and the change can only be authorized by a bilateral contract modification to the BPA issued by the Contracting Officer.

Maintenance:

- a) The vendor shall keep the maintenance log monthly checklist in either the vehicle's window seal or glove box.
- b) Monthly Maintenance: Vehicles stored under Categories 1 and 2 (see definitions) shall receive the following monthly maintenance, including at a minimum:
 - i) Check and maintenance of tire pressure. If any of the tires requires repair or retread, prior TM and/or designee approval is required;
 - ii) Check and maintenance of fluid levels;
 - iii) Any vehicle stored over three (3) consecutive months shall have a gasoline/fuel additive added to the fuel tank to prevent degradation; and
 - iv) Starting and running the vehicle's engine for at least fifteen (15) minutes. The vehicle shall be moved forward and rearward at least six (6) feet in each direction.
- c) Weekly Maintenance: Large vehicles stored shall receive the following weekly maintenance, at a minimum:

For Road Tractors:

- i) Check and maintenance of tire pressure. If tires require repair or retread prior TM and/or designee approval is required before performing tire repair;
- ii) Check and maintain fluid levels;
- iii) Starting the vehicle. The vehicle's engine shall run for at least forty (40) minutes; and
- iv) The vehicle shall be moved forward and rearward at least six (6) feet in each direction.

For Semi-trailers with refrigerator unit:

- i) Check and maintain fluid levels on refrigerator units;
- ii) Start the refrigerator unit. The unit's engine shall run for at least forty (40) minutes; and
- iii) If the battery is not operable and can no longer hold a charge, prior TM and/or designee approval is required before replacing.
- d) The vendor shall replace batteries if instructed by TM and/or designee. Only new batteries may be used; reconditioned batteries are unacceptable replacements.
- e) Keys: The vendor will be provided keys for all Category 1 and 2 seized vehicles in order to perform monthly maintenance. If replacement keys are required for a vehicle, prior TM and/or designee approval is required.
- f) Winterization: Vendor shall winterize vehicles as requested by the TM and/or designee.

Disposal:

- a) Disposal to Licensed Salvage/Scrap Dealers:
 - i) The vendor shall dispose of Category 4 vehicles or other vehicles as determined in writing by the TM and/or designee, no later than thirty (30) calendar days after notification by the TM and/or designee to dispose of the vehicle.
- b) A bill of sale shall be issued by the vendor and shall contain the following wording: "Vehicle is being sold for scrap purposes only and is not to be re-titled or re-registered as an operating motor vehicle". Vendor may be instructed to release vehicle to another authorized Government Agency as directed by the TM and/or designee.
- c) Release to Lien Holder, Claimant, or Owner:
 - i) Vendor may be instructed to release vehicle to a third party as directed by the Tm and/or designee; and
 - ii) Upon disposal via release to lien holder, claimant, or owner, the Vendor shall execute a District Hold Harmless Agreement, attached hereto as Exhibit 1.
- d) Unless otherwise directed, gray market vehicles shall be sold for export and Vendor shall issue a Bill of Sale.

GOVERNMENT'S RIGHT OF RECOVERY:

The vendor shall be responsible for all Government property in its custody. Any incidents of damage or loss shall be reported to the TM and/or designee immediately and shall be

followed up in writing within one (1) business day. The Government may receive benefits of any insurance the Vendor carries which provides for the indemnification of any loss or destruction, or damage of property in the custody and care of the Vendor, where such loss, destruction or damage is to Government property. The Vendor shall not knowingly take any legal or non-legal action to prejudice the Government's right to recover against third parties for any loss, destruction of, or damage to Government property, and shall furnish to the Government all reasonable assistance and cooperation (including assistance in prosecution of suit and the execution of instruments of assignment in favor of the Government) in obtaining recovery.

INSURANCE COVERAGE:

- a) The Vendor shall procure and maintain at its own expense during the entire period of performance under this BPA the following insurance coverage:
 - i) A minimum Workman's Compensation and Employee's Liability Insurance \$100,000.00 per incident; and
 - ii) General Public Liability Insurance covering all duties, services, and work to be performed under this BPA. The insurance shall provide limits of liability for bodily injury not less than \$200,000.00 per person and \$500,000.00 for each occurrence, and property damage limits of liability of not less than \$50,000.00 for each accident. The general liability policy shall name "The United States of America, action by and through the Department of Justice", as an additional insured with respect to operation s performed under this contract.
- b) The Vendor shall indemnify the Government for any claim by its insurer for subrogation against the Government by reason of any payment under these policies.
- c) Each liability policy shall include the following provision:
"It is a condition of this policy that the company shall furnish written notice to the Department of Justice, in care of the issuing office, thirty (30) days in advance of any reduction in or cancellation of this policy."

CONFIDENTIAL INFORMATION:

The vendor shall keep confidential information related to the seizure/forfeiture of the vehicles. The vendor shall refer requests for information, subpoenas, or dispositions to the TM and/or designee. No information regarding seized vehicles or vehicles shall be provided to anyone other than the DEA.

DOCUMENTATION AND VEHICLE FILES:

Upon request, or within thirty (30) days of notice, if the BPA is terminated for any reason or upon expiration of the period performance, the Vendor shall deliver to the TM all forms, files, records, procedures, documents, and all other operation materials used in the performance of services under the BPA.

NOTICE OF PROHIBITION:

The Vendor shall assist the DEA in complying with the provisions of the Comprehensive Crime Control Act of 1984, regarding the prohibition of sale of forfeited property to a defendant or a person acting as his agent. The vendor shall provide notice to prospective purchasers as to the prohibition.

PROHIBITED PARTIES:

The Vendor, its employees, and their families and/or persons acting for and/or on behalf of the Vendor are prohibited from bidding on any property offered for sale by the United States Government.

3. DEFINITION AND TERMS:

- a) Acceptable Outdoor Storage Surfaces:** Caliche, cement, concrete, or gravel/stone.
- b) Components:** The spare tire, jack, lug wrench, and other standard or optimal vehicle equipment which are integral parts of the vehicle.
- c) Contracting Officer (CO):** A person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.
- d) Gray Market Vehicles:** Vehicles that do not meet U.S. Department of Transportation (DOT) and Environmental Protection Agency (EPA) standards and cannot be legally sold or registered in the United States, but are legal for export sale.
- e) Loaded Road Miles:** The firm-fixed towing price, as specified in the schedule, is calculated based on the actual road miles in accordance with the applicable towing Contract Line Item Number (CLIN) from the designated point of pick-up to the designated drop-off point in which a vehicle is in tow or loaded onto a flatbed. The Vendor may not charge for miles traveled en route to the seized vehicle pickup point.
- f) Personal Property:** Contents in a seized vehicle that are not standard accessories, such as clothing, personal items, compact discs, tapes, furniture, appliances, supplies, cargo, etc.
- g) Roadside Tows:** Tows from a general location.

- h) **Sub-Task Order:** An order placed by an authorized individual obligating funding specific call orders.
- i) **Station Tows:** Tows from a specified fixed location.
- j) **Task Monitor (TM):** A Government employee who provides technical direction to the Vendor. The TM and/or Designee are designated in writing by the CO.
- k) **Vehicles:**
 - i) **Standard Vehicles:** Production sized cars, trucks, vans, all-terrain vehicles (ATV's), motorcycles, golf carts, jet skis (with or without hauling trailers), dune buggies, snowmobiles, mopeds, and 20 foot or less trailer able boats.
 - ii) **Large Vehicles:** Buses, construction/farm type vehicles, recreational vehicles, motor-homes, semi-tractor trailers, and all other trucks, trailers, 21' to 30' trailer able boats, or heavy equipment.
- l) **Vehicle Categories (N.A.D.A. Loan Value):**
 - i) **Category 1 Vehicle:** Vehicles valued at \$10,000.00 and above are eligible to be stored indoors, with maintenance.
 - ii) **Category 2 Vehicle:** Vehicles valued at \$2,501.00 to \$10,000.00 are to be stored outdoors, with maintenance.
 - iii) **Category 3 Vehicle:** Vehicles valued at \$501.00 to \$2,500.00 are to be stored outdoors, without maintenance.
 - iv) **Category 4 Vehicle:** Salvage/Scrap. Vehicles valued at \$0 to \$500.00 are to be stored outdoors, without maintenance.
- m) **Winterization:** Preparation of the vehicle to endure cold weather months. This includes, but is not limited to the following services:
 - i) Draining the fresh water tank and hot water heater;
 - ii) Filling the plumbing lines with non-toxic (propylene glycol) antifreeze;
 - iii) Pouring non-toxic (propylene glycol) antifreeze down the drains and toilets;
 - iv) Replacing existing antifreeze/fluid from the engine block, manifolds, air conditioning units and water unit with new non-toxic (propylene glycol) antifreeze;
 - v) Utilizing a water separator to eliminate moisture I the fuel tank; and
 - vi) Turning off all the fuel valves.

II. EXTENT OF OBLIGATION:

The Government is obligated only to the extent of authorized purchases actually made under the BPA upon award, which will have a period of performance not to exceed 60 months.

III. PURCHASE LIMITATION:

Individual purchases under the awarded BPA will not exceed the Simplified Acquisition Threshold.

IV. INDIVIDUALS AUTHORIZED TO PURCHASE UNDER THE BPA:

Each of the individuals listed below have purchase authority

DEA Headquarters
Office of Acquisition and Relocation Management (FA) Contracting Officer

Houston Field Division
Valentina K. Solis (Primary)
Karissa K. Kravetz (Alternate)

V. DELIVERY TICKETS:

All services performed under this BPA shall be accompanied by delivery tickets that shall contain at a minimum, the following information:

- (i) Name of Contractor
- (ii) BPA Number
- (iii) Date of Services
- (iv) Call Order Number
- (v) Itemized list of services furnished to include:
 - 1) A copy of the signed tow ticket to include the requesting agent's name and contact information;
 - 2) Copy of faxed tow request form;
 - 3) Records related to vehicle condition, storage, disposal, and all Call Orders;
 - 4) All maintenance documentation; and
 - 5) All digital photos of the vehicle.
- (vi) Quantity, unit price, and extension of each item, less applicable discounts
- (vii) Date services were performed

VI. INVOICES:

Offeror shall provide a summary invoice submitted monthly, for all deliveries made during a billing period, identifying the delivery tickets covered therein, stating their total dollar value, and supported by receipt copies of the delivery tickets. In addition, the Offeror shall provide a spreadsheet of all vehicles towed under this BPA with the respective agent's name and contact information on a monthly basis.

VIII. APPLICABLE TERMS AND CONDITIONS:

The terms and conditions included in this BPA apply to all purchases made pursuant to it. In the event of an inconsistency between provisions of this BPA and the contractor's invoice, the provisions of this BPA will take precedence.

The DEA reserves the right to review and renegotiate the terms and conditions of this Agreement at any time during the term of the BPA.